

The Targeted Public Distribution System (Control) Order, 2015

Source: <https://indiankanoon.org/doc/74257660/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Targeted Public Distribution System (Control) Order, 2015

UNION OF INDIA

India

The Targeted Public Distribution System (Control) Order, 2015

Rule THE-TARGETED-PUBLIC-DISTRIBUTION-SYSTEM-CONTROL-ORDER-2015 of 2015

Published on 20 March 2015

Commenced on 20 March 2015

[This is the version of this document from 20 March 2015.]

[Note: The original publication document is not available and this content could not be verified.]

The Targeted Public Distribution System (Control) Order, 2015

Published vide Notification No. G.S.R. 213(E), dated 20th March, 2015

Ministry of Consumer Affairs, Food and Public Distribution

(Department of Food and Public Distribution)

Order

G.S.R. 213(E). - Whereas the Central Government is of the opinion that it is necessary and expedient so to do for maintaining supplies and securing availability and distribution of essential commodity, namely, foodgrains under the Targeted Public Distribution System;

Now, therefore, in exercise of the powers conferred by section 3 of the Essential Commodities Act, 1955 (10 of 1955

) and in supersession of the Public Distribution System (Control) Order, 2001, except as respects things done or omitted

to be done before such supersession and save as otherwise provided hereunder, the Central Government hereby makes the following Order, namely: -

1.

Short title, and commencement.

(1)

This Order may be called the Targeted Public Distribution System (Control) Order, 2015.

(2)

It shall come into force on the date of its publication in the Official Gazette:

Provided that provisions of the Public Distribution System (Control) Order, 2001 shall continue to have effect as against the corresponding provisions of this Order in any State which has not implemented the Food Security Act or is implementing the said Act only in part.

2.

Definitions.

- In this Order -

(a)

"Act" means the Essential Commodities Act, 1955 (10 of 1955

);

(b)

"allocation month" means the month for which foodgrains are allocated by Central Government and the State Governments for distribution under the Targeted Public Distribution System;

(c)

"Annex" means an Annex appended to this Order;

(d)

"Appellate Authority" means an authority appointed as such by the State Government under sub-clause (1) of clause 15 of this Order;

(e)

"Antyodaya Anna Yojana" means the scheme by the said name launched by the Central Government on the 25th day of December, 2000 and as modified from time to time;

(f)

"Antyodaya households" means those households identified by the State Government to receive foodgrains under the Antyodaya Anna Yojana;

(g)

"authorised agency" means the concerned Department of State Government or a body corporate or a company owned by it or a co-operative;

(h)

"Corporation" means the Food Corporation of India constituted under the Food Corporations Act, 1964 (37 of 1964

);

(i)

"designated authority" means any officer not below the rank of Food and Civil Supplies Inspector in the State Government;

(j)

"fair price shop owner" means a person and includes a cooperative society or a body corporate or a company of a State Government or a Gram Panchayat or any other body in whose name a shop has been licensed to distribute essential commodities under the Targeted Public Distribution System;

(k)

"Food Security Act" means the National Food Security Act, 2013 (20 of 2013

);

(l)

"local authority" includes a panchayat, municipality, district board, cantonment board, town planning authority and in the States of Assam, Manipur, Meghalaya, Mizoram, Nagaland and Tripura where panchayats do not exist, the village council or committee or any other body, by whatever name called, which is authorised under the Constitution or any other law for the time being in force for self-governance or any other authority or body vested with the control and management of civic services, within a specified local area;

(m)

"Social audit" means the process in which people collectively monitor and evaluate the planning and implementation of Targeted Public Distribution System;

(n)

"State" includes a Union Territory;

(o)

"State Government" includes a Union Territory/Administration;

(p)

"Vigilance Committee" means a committee constituted to regularly supervise the functioning of Targeted Public Distribution System in the State;

(q)

words and expressions not defined in this Order but defined in the Act, or the Food Security Act, shall have the meaning respectively assigned to them in those Acts.

3.

Identification of eligible households.

(1)

The State-wise percentage coverage of eligible households under the Food Security Act in rural and urban areas respectively for receiving subsidised foodgrains under the Targeted Public Distribution System shall be as in column 4 of Annex-I.

(2)

The State-wise ceiling on coverage of number of persons belonging to eligible households for receiving subsidised foodgrains under the Targeted Public Distribution System, indicated in column 5 of Annex-I, shall be under the following two categories-

(i)

[existing Antyodaya households;]

[Substituted by Notification No. G.S.R. 814(E), dated 28.10.2015 (w.e.f. 20.3.2015).]

(ii)

remaining to be covered under priority households category to be identified by State Government as per criteria to be evolved by them subject to the other provisions of this Order.

(3)

The State-wise number of Antyodaya households shall not exceed the accepted number of Antyodaya households in that State, as specified in column 6 of Annex-I:

[* * *]

[Deleted 'Provided that when an Antyodaya household becomes ineligible on account of migration outside the State, improvement in social or economic status, death, etc., no new Antyodaya household shall be identified in that State and the total number of Antyodaya households shall be reduced to that extent.' by Notification No. G.S.R. 814(E), dated 28.10.2015 (w.e.f. 20.3.2015).]

(4)

[* * *]

[Deleted 'Upon a reduction in the number of Antyodaya households, the States may increase the coverage of the persons to that extent in the priority category, subject to the ceilings prescribed in sub-clause (2).' by Notification No. G.S.R. 814(E), dated 28.10.2015 (w.e.f. 20.3.2015).]

(5)

The State Government shall prepare and notify the guidelines for identification of priority households in the rural and urban areas, with special focus on coverage of all the vulnerable or needy sections of the society, and display the guidelines in the public domain including on the State web portal.

(6)

For the purpose of allocation of subsidised foodgrains under Targeted Public Distribution System by the Central Government, there shall be no increase in the State-wise number of persons covered under Targeted Public Distribution System till the data from the next population Census, after the commencement of this Order, becomes available.

(7)

The list of eligible households shall be drawn up by the designated authority in respect of area under their jurisdiction.

(8)

The State Government shall get the provisional list of eligible households displayed in the public domain including the office of the local authority and on the State web portal, showing the category-wise lists of eligible households and their members.

(9)

The State Government shall use the list of persons as compiled during Census of India by the Registrar General and Census Commissioner or voters list notified by Election Commission of India or Socio Economic and Caste Census data or any other authentic source of data to cross-check and verify the list of eligible households and their members.

(10)

The State Government shall prescribe the detailed procedure for finalisation of the list of eligible households covering, inter-alia, aspects like the process of drawing up of draft list, putting the draft list in the public domain including reading out of the list in meetings of the Gram Sabha or equivalent body in urban areas, inviting objections, disposal of objections, appeals and so on.

(11)

The head of the local authority and the designated authority shall jointly verify and certify the final list of eligible households and the local authority shall pass a resolution adopting the final list of the eligible households.

(12)

The final list of the eligible households shall be displayed in the public domain including office of the local authority and on the State web portal, showing the category-wise names of eligible households and their members.

(13)

The State Government shall regularly review the list of the eligible households for the purpose of deletion of ineligible households or inclusion of eligible households.

(14)

During the review, the State Government shall take into account, inter-alia, the increase in the number of eligible households or their members due to migration in to the State, birth, marriage, change in social and economic status and the decrease in the number of eligible households or their members due to migration outside the State, death, marriage, change in social or economic status:

Provided that the total number of eligible households after the review shall not exceed the ceilings prescribed in sub-clause (2).

4.

Ration Cards.

(1)

The State Government shall issue ration cards to the eligible households as mentioned in the final list specified under sub-clause (12) of clause 3:

Provided that while issuing ration cards to the eligible households, the State Government shall ensure that the coverage of the number of eligible households is not merely done with a view to exhaust the State-wise ceiling of number of eligible households.

(2)

The State Government shall issue a ration card only to a citizen of India who is resident of that State and who fulfills the conditions for getting a ration card as may be prescribed by the State Government:

Provided that the State Government may also issue a ration card to a household or a person residing in that State by virtue of the household or person being granted the status of a refugee and is allowed the entitlement of benefits on humanitarian grounds by the Central Government.

(3)

The State Government shall ensure that a ration card, whether paper based or a smart card, is issued for use under the

Targeted Public Distribution System or schemes mentioned in the Food Security Act or a specific scheme of the State Government for distribution of essential commodities.

(4)

While issuing a smart card, the State Government shall ensure that a point of sale electronic device for reading the smart card is installed at the fair price shop.

(5)

The State Government shall issue separate and distinct ration cards to the Antyodaya households and the priority households.

(6)

Ration card shall not be used as a document of identity or proof of residence.

(7)

The State Government shall prescribe a suitable form of application for new ration card and modification in the existing ration card.

(8)

Any modification referred to in sub-clause (7) may be on account of shifting of residence, birth or death, change in category of beneficiary, corrections in the details mentioned in the card or any other such reason.

(9)

The form referred to in sub-clause (7) may include requisite details including Aadhaar number, bank account details, and mobile telephone number.

(10)

The State Government shall retain all the information under this clause in the software prepared by National Informatics Centre or as per the fields and standards prescribed by the Central Government.

(11)

The State Government shall maintain the ration card data in the digitised database and ensure that issue of a new ration card and modification in the existing ration card is undertaken through the software programme so that the database is automatically updated.

(12)

The State Government shall designate the authority and office for receiving, registering, acknowledging and processing of application for issuance of ration card or modification in the ration card.

(13)

The State Government may also prescribe the procedure for receiving the application through online mechanism including the use of e-service centres, kiosks.

(14)

The designated authority shall issue a ration card to an eligible applicant within a reasonable time not exceeding one month of the date of receipt of the application after necessary checks and verification.

(15)

The State Government shall issue a ration card in replacement of existing ration card only when the existing ration card is lost or becomes unfit for use on account of being damaged or mutilated or is exhausted fully or where there are requests for modification in the ration cards.

(16)

The details of the services relating to the ration cards and timeframe for delivery of services shall be notified by the State Government and displayed in the public domain including on the State web portal.

(17)

The list of the ration card holders shall be displayed in the public domain including in the office of the local authority and on the State web portal, showing the category-wise names of the eligible households and their members.

(18)

The State Government shall make all endeavours to eliminate bogus or ineligible ration cards as a continuous exercise.

(19)

The State Government shall organise an annual special drive before the end of every financial year for the elimination of bogus or ineligible ration cards.

(20)

The State Government shall submit a report of ration cards deleted or cancelled on quarterly basis to the Central Government in the format at Annex-II.

5.

Scale of issue and issue price.

- The Central Government shall make available foodgrains from the Central Pool to the State Governments for distribution under the Targeted Public Distribution System to eligible households at such scales and prices as specified under Food Security Act.

6.

Delivery of foodgrains.

(1)

The Corporation shall ensure physical delivery of foodgrains of prescribed quality specifications upto designated depots in each State for distribution under the Targeted Public Distribution System, as per the allocation made by the Central Government, within seven working days of the receipt of payment from the State Government.

(2)

In case of States opting for decentralised procurement, the foodgrains for distribution under Targeted Public Distribution System shall be released by the States as per the allocation made by the Central Government out of the quantity of foodgrains procured and stored for the Central Pool by the State Government or its agencies and in case of any shortfall, the Corporation shall provide the balance quantity of foodgrains at the designated depots in the manner as prescribed in sub-clause (1).

(3)

The State Government shall deposit the cost of foodgrains to the Corporation in advance during the month preceding the allocation month so that the foodgrains are lifted from the Corporation as per the time prescribed in sub-clause (9) of clause 7.

7.

Lifting of foodgrains by States.

(1)

The State Government shall lift foodgrains from the designated depots of the Corporation through its authorised agency.

(2)

The State Government shall, on getting allocation of foodgrains from the Central Government, issue allocation orders authorising their agencies to lift foodgrains from the Corporation and such order among others shall specify-

(i)

number of cards and units;

(ii)

balance in hand; and

(iii)

allocation made for each month in respect of a fair price shop.

(3)

While making allocation to the fair price shop, the designated authority shall take into account the balance stock, if any, lying undistributed with the fair price shop owner for the subsequent allocations.

(4)

The designated authority shall ensure that one copy of the allocation order made to the fair price shop is delivered to the local authority, vigilance committees, and any other body nominated by the State Government for monitoring the functioning of the fair price shop.

(5)

The State Government shall ensure that the allocation order depicting the stocks of foodgrains allotted during the month to the fair price shops is displayed on the public domain including on the State web portal.

(6)

Before taking delivery of foodgrains from the Corporation, an officer of the State Government not below the rank of Food and Civil Supplies Inspector and an officer of the Corporation shall jointly inspect the stocks of foodgrains intended for issue to ensure that the stocks conform to the prescribed quality specifications.

(7)

After the joint inspection, the Corporation shall issue to the State Government, before dispatch of foodgrains from godown, one stack-wise sealed sample jointly drawn for display at the fair price shop and a duplicate sealed sample drawn shall be kept with the Corporation for future reference:

Provided that in case the authorised agency of the State Government takes delivery of foodgrains from the Corporation and stores the foodgrains in an intermediate godown before delivering them to the fair price shop dealers, the authorised agency shall follow the procedure under this sub-clause at that intermediate godown:

Provided further that where decentralised procurement of foodgrains is in operation in the States, the authorised agency of the State Government shall follow the procedure under this sub-clause.

(8)

The quantity of the samples to be drawn, retention period of the samples and disposal of the samples shall be as per the instructions issued by the Central Government from time to time.

(9)

The State Government shall ensure the lifting of foodgrains from the Corporation by the last day of the month preceding the allocation month.

(10)

The extension of time for lifting of foodgrains from the Corporation may be considered by the Central Government or the Corporation only in very rare and deserving cases as per the instructions issued by the Central Government.

(11)

The State Government shall devise suitable mechanism for transportation of foodgrains from the Corporation godown to the intermediate godown and the door-step delivery of the foodgrains to the fair price shop:

Provided that the State Government may also transport foodgrains directly to the fair price shop from the Corporation godown and ensure its door-step delivery to the fair price shop.

(12)

The State Government shall furnish a report on quarterly basis to the Central Government regarding door-step delivery in the format at Annex-III.

(13)

The State Government shall exercise necessary checks to ensure that full quantity and the same quality of foodgrains as lifted by them reaches their godowns and in turn at the fair price shop.

8.

Distribution of foodgrains by States.

(1)

The allocation of foodgrains made by the Central Government under the Targeted Public Distribution System to the State Government shall be used for distribution as per the provisions of the Food Security Act and not for any other purpose.

(2)

The State Government shall furnish a utilisation certificate every year in the format as at Annex-IV.

(3)

The State Government shall ensure, through the authorised agency, physical delivery of foodgrains to the fair price shop by end of the month preceding the allocation month and in any case not later than the first week of the allocation month.

(4)

The State Government shall obtain a monthly certificate, including through electronic platform, confirming delivery of allocated foodgrains to the fair price shop and their distribution to eligible households during the allocation month.

(5)

The monthly certificate shall be given by the fair price shop owner and two or more persons as may be authorised by the State Government such as head of the local authority, Executive Officer, Secretary of the local authority, members from the vigilance committees, women's self help group among others.

9.

Licensing and regulation of fair price shops.

(1)

The State Government shall issue an order under section 3 of the Act, but not inconsistent with this Order, for regulating the sale and distribution of the essential commodities.

(2)

The licences to the fair price shop owners shall be issued under the said order and the order issued by the State Government shall be notified and displayed on web portal.

(3)

The designated authority appointed by the State Government shall issue the licences to the fair price shop owners.

(4)

The State Government shall accord preference to public institutions or public bodies such as panchayats, self help groups, cooperative societies in licensing of fair price shops and management of fair price shops by women or their collectives.

(5)

The licences to the fair price shop owners shall be issued keeping in view the viability of the fair price shop.

(6)

The State Government shall ensure that the number of ration card holders attached to a fair price shop are reasonable, the fair price shop is so located that the consumer or ration card holder does not have to face difficulty to reach the fair price shop and that proper coverage is ensured in hilly, desert, tribal and such other areas difficult to access.

(7)

The State Government shall fix an amount as the fair price shop owner's margin, which shall be periodically reviewed for ensuring sustained viability of the fair price shop operations.

(8)

The State Government shall put in place a mechanism to ensure the release of fair price shop owner's margin without any delay.

(9)

The State Government shall allow sale of commodities other than the foodgrains distributed under the Targeted Public Distribution System at the fair price shop to improve the viability of the fair price shop operations.

10.

Operation of fair price shops.

(1)

The fair price shop owner shall disburse foodgrains to the ration card holder as per his entitlement under the Targeted Public Distribution System.

(2)

The ration card holder may draw his full entitlement of foodgrains in more than one installment.

(3)

The fair price shop owner shall not retain the ration cards after the supply of the foodgrains.

(4)

The licence issued by the State Government to the fair price shop owner shall lay down the duties and responsibilities of the fair price shop owner, which shall include, inter-alia,-

(i)

sale of foodgrains as per the entitlement of ration card holders under the Targeted Public Distribution System at the prescribed retail issue price;

(ii)

display of information on a notice board at a prominent place in the shop on daily basis regarding (a) entitlement of foodgrains, (b) scale of issue, (c) retail issue prices, (d) timings of opening and closing of the fair price shop including lunch break, if any, (e) stock of foodgrains received during the month, (f) opening and closing stock of foodgrains, (g) the mechanism including authority for redressal of grievances with respect to quality and quantity of foodgrains under the Targeted Public Distribution System and (h) toll-free helpline number;

(iii)

maintenance of the records of ration card holders, e.g. stock register, issue or sale register shall be in the form prescribed by the State Government including in the electronic format in a progressive manner;

(iv)

display of samples of foodgrains being supplied through the fair price shop;

(v)

production of books and records relating to the allotment and distribution of foodgrains to the inspecting agency and furnishing of such information as may be called for by the designated authority;

(vi)

accounts of the actual distribution of foodgrains and the balance stock at the end of the month, at the fair price shop, shall be sent to the designated authority of the State Government with a copy to the local authority;

(vii)

opening and closing of the fair price shop as per the prescribed timings displayed on the notice board.

(5)

Any ration card holder desirous of obtaining extracts from the records of a fair price shop owner may make a written request to the owner along with the deposit of the fees specified by the State Government. The fair price shop owner shall provide such extracts of records to the ration card holder within fourteen days from the date of receipt of a request and the fee specified by the State Government:

Provided that the State Government may prescribe the period for which the records are to be kept for providing it to the ration card holder by the fair price shop owner.

(6)

The State Government shall prescribe the procedure to be followed by the designated authority in cases where the fair price shop owner does not provide the records in the manner referred in sub-clause (5) to the ration card holder in the stipulated period and the designated authority in each case shall ensure that the records are provided to the ration card holder without any undue delay.

(7)

The designated authority shall take prompt action in respect of violation of any condition of licence including any irregularity committed by the fair price shop owner, which may include suspension or cancellation of the fair price shop owner's licence.

(8)

The State Government shall prescribe the maximum period within which proceedings relating to enquiry into irregularities committed by the fair price shop owner shall be concluded, resulting in any action as under sub-clause (7).

(9)

In case of suspension or cancellation of the licence, the State Government shall make alternative arrangements for ensuring uninterrupted supply of foodgrains to the eligible households:

Provided that in case of cancellation of the licence of the fair price shop owner, new licence shall be issued within a month of cancellation.

(10)

The State Government shall furnish complete information on action taken against a fair price shop owner under this clause annually to the Central Government in the format at Annex-V.

11.

Monitoring.

(1)

The State Government shall ensure regular inspections of fair price shops not less than once in three months by the designated authority. The State Government shall issue orders specifying the inspection schedule, list of check points and the authority responsible for ensuring compliance with the said orders.

(2)

The State Government shall ensure that stocks of foodgrains under the Targeted Public Distribution System, as issued from the Corporation godowns, are not replaced or tampered with during storage, transit or any other stage till delivery to the ration card holder.

(3)

Any authority or any person authorised by it in this behalf or any other person, who is engaged in the distribution and handling of foodgrains under the Targeted Public Distribution System, shall not indulge in substitution or adulteration or diversion or theft of stocks at any stage till delivery to the ration card holder.

Explanation. - For the purpose of this clause,-

(i)

"diversion" means unauthorised movement or delivery of foodgrains released from godowns but not reaching the

intended beneficiaries under the Targeted Public Distribution System.

(ii)

"substitution" means replacement of foodgrains released from godowns with the same articles of inferior quality for distribution to the intended beneficiaries under the Targeted Public Distribution System.

(4)

The State Government shall set up vigilance committees for the Targeted Public Distribution System at the State, District, Block and fair price shop levels as per the provisions of the Food Security Act to perform functions as specified in the said Act.

(5)

Meetings of the vigilance committees shall be held at least once every quarter at all levels and the date and periodicity of the meeting shall be notified by the State Governments and given wide publicity.

(6)

The State Government shall send a report annually to the Central Government on the functioning of vigilance committees in the format at Annex-VI.

(7)

The number of meetings held by the vigilance committees shall be displayed on the State web portal and the action taken on issues discussed in meetings of vigilance committees shall be reviewed in the next meeting.

(8)

The State Government shall notify an internal grievance redressal mechanism which shall include toll free call centres and use of State web portal.

(9)

The State Government shall give wide publicity to the up-to-date details of the Grievance Redressal Officer such as name, telephone number including mobile number, office address and the grievance redressal mechanism.

(10)

The State Government shall appoint District Grievance Redressal Officers as per the provisions of the Food Security Act for expeditious and effective redressal of grievances of the aggrieved persons in matters relating to distribution of entitled foodgrains under Targeted Public Distribution System.

(11)

An appeal against the order of the District Grievance Redressal Officer shall be preferred before the State Food Commission constituted under section 16 of the Food Security Act.

(12)

The State Government shall furnish a report on quarterly basis to the Central Government regarding the handling of grievances in the format at Annex-VII.

(13)

The State Government shall issue and adopt a Citizen's Charter as stipulated under law or based on the model Citizen's Charter issued by the Central Government.

(14)

The State Government shall prescribe a system of periodic reporting, including through electronic platform, at various levels within the State regarding the functioning of fair price shops.

(15)

The State Government shall ensure monitoring of the end-to-end operations of the Targeted Public Distribution System through the electronic platform.

Explanation. - For the purpose of this sub-clause "end-to-end operations" shall include activities relating to digitisation of beneficiary, ration cards, and other databases; computerisation of supply-chain management; setting up of transparency portal, grievance redressal mechanism and fair price shop automation.

(16)

The State Government shall take necessary steps to educate the ration card holders regarding their rights and privileges by the use of electronic and print media as well as display boards outside the fair price shops.

12.

Transparency and accountability.

(1)

All Targeted Public Distribution System related records shall be placed in the public domain and kept open for inspection to the public in the manner as may be prescribed by the State Government.

(2)

Every local authority, or any other authority or body, as may be authorised by the State Government, shall conduct or cause to be conducted, periodic social audits on the functioning of Targeted Public Distribution System, and cause to publicise its findings and take necessary action, in such manner as may be prescribed by the State Government.

(3)

The Central Government may, if it considers necessary, conduct or cause to be conducted social audit through independent agencies having experience in conduct of such audits.

13.

Penalty.

- If any person contravenes any of the provisions of this Order he shall be liable to punishment under section 7 of the Act.

14.

Power of search and seizure.

(1)

An officer authorised by the State Government, shall be competent to inspect or summon such records or documents as may be considered by him necessary for examination and take extracts or copies of any records or documents produced before him.

(2)

If the officer referred to in sub-clause (1) has reasons to believe on receipt of a complaint or otherwise that there has been any contravention of the provisions of this Order or with a view to securing compliance with this Order, he may enter, inspect or search the fair price shop or any premises relevant to transactions of business of the fair price shop.

(3)

The officer referred to in sub-clause (1) may also search, seize or remove such books of accounts or stocks of foodgrains where such authority has reason to believe that these have been used or will be used in contravention of the provisions of this Order.

(4)

The officer referred to in sub-clause (1) conducting search and seizure under sub-clause (3) shall inform the State Government or any other officer authorised by it in this behalf, the details of the search conducted and the stocks of foodgrains so seized by them under that clause.

(5)

The provisions of section 100 of the Code of Criminal Procedure 1973, relating to search and seizure shall so far as may be, apply to search and seizure under this Order.

15.

Appeal.

(1)

The State Governments shall appoint an officer of that Government not below the rank of Additional District Magistrate of a District as an Appellate Authority for exercising the powers conferred upon and discharging the functions assigned to him under this Order.

Provided that an appeal pending before an Appellate Authority appointed under the Public Distribution System (Control) Order, 2001 shall be disposed of by such authority as if this Order had not been made.

(2)

Any person aggrieved by an order of the designated authority denying the issue or renewal of a ration card or cancellation of the ration card may appeal to the Appellate Authority within thirty days of the date of receipt of the order.

(3)

Any person aggrieved by an order of the designated authority denying the issue or renewal of the licence to the fair price shop owner, or cancellation of the licence may appeal to the Appellate Authority within thirty days of the date of receipt of the order and the Appellate Authority shall, as far as practicable, dispose the appeal within a period of sixty days:

Provided that once an appeal has been disposed of by the Appellate Authority, the time for issue or renewal of the licence of the fair price shop owner by the designated authority referred in sub-clause (9) of clause 10 shall begin from

the date of decision of the Appellate Authority on the appeal.

(4)

No appeal shall be disposed of unless the aggrieved person has been given a reasonable opportunity of being heard.

(5)

Pending the disposal of an appeal, the Appellate Authority may direct that the order under appeal shall not take effect for such period as the authority may consider necessary for giving a reasonable opportunity to the other party under sub-clause

(4)

or until the appeal is disposed of, whichever is earlier.

16.

Protection of action taken under order.

- No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Order.

17.

Power of Central Government to give directions.

- The Central Government may give such directions as it may deem necessary to the State Government for execution of all or any of the provisions of this Order.

Annex - I

Coverage under the Targeted Public Distribution System under section 3(2) of the National Food Security Act, 2013 (see clause 3)

S. No.

State/ UT

Population (Census 2011)

Coverage

Antyodaya Anna Yojana (Number of families)*

as percentage of population

Number of persons to be covered

Rural

Urban

Rural

Urban

Total

1

2

3

4(i)

4(ii)

5(i)

5(ii)

5(iii)

6

1

Andhra Pradesh

84,665,533

60.96

41.14

34,327,666

11,664,731

45,992,397

1,557,800

2

Arunachal Pradesh

1,382,611

66.31

51.55

708,963

161,581

870,545

38,000

3

Assam

31,169,272

84.17

60.35

22,541,160

2,648,614

25,189,775

704,000

4

Bihar

103,804,637

85.12

74.53

78,374,264

8,742,078

87,116,341

2,501,000

5

Chhattisgarh

25,540,196

84.25

59.98

16,516,082

3,560,735

20,076,817

718,900

6

Delhi (NCT)

16,753,235

37.69

43.59

158,041

7,119,954

7,277,995

156,800

7

Goa

1,457,723

42.24

33.02

232,917

299,263

532,181

18,400

8

Gujarat

60,383,628

74.64

48.25

25,878,298

12,406,431

38,284,729

812,800

9

Haryana

25,353,081

54.61

41.05

9,027,848

3,621,262

12,649,110

302,500

10

Himachal Pradesh

6,856,509

56.23

30.99

3,468,157

213,429

3,681,586

197,100

11

Jammu and Kashmir

12,548,926

63.55

47.10

5,805,178

1,608,044

7,413,222

282,200

12

Jharkhand

32,966,238

86.48

60.20

21,651,951

4,773,434

26,425,385

917,900

13

Karnataka

61,130,704

76.04

49.36
28,554,943
11,638,187
40,193,130
1,199,700
14
Kerala
33,387,677
52.63
39.50
9,186,833
6,293,208
15,480,040
595,800
15
Madhya Pradesh
72,597,565
80.10
62.61
42,082,857
12,559,357
54,642,214
1,581,600
16
Maharashtra
112,372,972
76.32
45.34
46,971,481
23,045,203
70,016,683
2,505,300
17
Manipur
2,855,794
88.56
85.75
1,790,364
715,287
2,505,651
63,600
18
Meghalaya
2,964,007
77.79
50.87
1,842,823
302,695
2,145,517
70,200
19

Mizoram

1,091,014

81.88

48.60

433,175

273,121

706,296

26,100

20

Nagaland

1,980,602

79.83

61.98

1,123,097

355,605

1,478,702

47,500

21

Odisha

41,947,358

82.17

55.77

28,719,429

3,901,738

32,621,167

1,264,500

22

Punjab

27,704,236

54.79

44.83

9,487,875

4,656,688

14,144,562

179,400

23

Rajasthan

68,621,012

69.09

53.00

35,609,149

9,052,811

44,661,960

932,100

24

Sikkim

607,688

75.74

40.36

345,346

61,237

406,582
16,500
25
Tamil Nadu
72,138,958
62.55
37.79
23,261,863
13,207,503
36,469,365
1,864,600
26
Tripura
3,671,032
74.75
49.54
2,025,763
476,070
2,501,833
113,100
27
Uttar Pradesh
199,581,477
79.56
64.43
123,406,329
28,652,314
152,058,643
4,094,500
28
Uttarakhand
10,116,7
52 65.26
52.05
4,584,895
1,608,953
6,193,849
190,900
29
West Bengal
91,347,736
74.47
47.55
46,330,525
13,853,246
60,183,770
1,985,700
30
A&N Islands
379,944
24.94

1.70
60,956
2,304
63,260
10,700
31
Chandigarh
1,054,686
38.54
47.26
11,178
484,737
495,915
8,800
32
Dadra and Nagar Haveli
342,853
84.19
51.54
154,088
82,376
236,464
6,900
33
Daman and Diu
242,911
26.66
56.47
16,084
103,103
119,187
1,500
34
Lakshadweep
64,429
35.30
33.56
4,985
16,883
21,868
1,200
35
Puducherry
1,244,464
59.68
46.94
235,343
399,048
634,390
32,200
Total

1,210,327,463

75

50

624,929,906

188,561,229

813,491,135

24,999,800

* Within the total State-wise number of persons to be covered under National Food Security Act, 2013, as indicated in Column 5(iii).

Annex-II

Statement on deletion of ineligible or bogus ration cards and inclusion of eligible households for the quarter ending June/ Sept./ Dec./ March [see sub-clause (20) of clause 4]

I. NFSA Implementing States.

Household/ Beneficiary Category

Existing number of ration cards at beginning of the quarter

First Quarter ending June

Second Quarter ending September

Third Quarter ending December

Fourth Quarter ending March

No. of ration cards at the end of the quarter/ year

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Priority

Antyodaya Anny Yojana (AAY)

Others (specify e.g. those covered by tide over allocation)

Total

II. States yet to start implementation of NFSA:

Household/ Beneficiary Category

Existing number of ration cards at beginning of the quarter

First Quarter ending June

Second Quarter ending September

Third Quarter ending December

Fourth Quarter ending March

No. of ration cards at the end of the quarter/ year

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Number of ration cards deleted/ cancelled

Number of new ration cards issued

Antyodaya Anny Yojana (AAY)

Below Poverty Line (BPL)

Above Poverty Line (APL)

Total

Note: The information shall be furnished within two weeks after the end of every quarter.

Annex-III

Statement on doorstep delivery to the fair price shops for the quarter ending June/ Sept./ Dec./ March [see sub-clause (12) of clause 7]

Total number of districts in the State/ UT: _____

Total number of FPSs in the State/ UT: _____

Sl. No.

Name of Agency

Type of Agency*

Nos. of districts covered under doorstep

delivery by the Agencies

Total numbers of FPSs covered by the Agency
under doorstep delivery

1

2

3

4

Total

*As regards the type of agency, please indicate whether State Civil Supplies Corporation or other apex body, Cooperative Societies, Private Agency e.g. wholesalers, LAMPS, PACS etc., or any other agency. In case more than one agency is making door-step delivery in a one district, same may also be indicated.

Note: The information shall be furnished within two weeks after the end of every quarter.

Annex - IV

Format for furnishing annual Utilisation Certificate (UC) on distribution of foodgrains allocated by the Government of India from Central Pool for the period ending 31st March, every year [see sub-clause (2) of clause 8]

Utilisation Certificate for the year _____

This is to certify that during the __ (year) __, __ (quantity) __ tons of foodgrains were allocated by Government of India for distribution under TPDS/ additional allocation) and the same were distributed to the beneficiaries as follows, namely:-
(figures in tons)

Commodity

Allotment made by the Government of India

Quantity lifted by the State Govt.

Unlifted quantity out of the allotted
quantity(col. 2 ? col. 3)

Quantity distributed

Balance quantity out of the lifted
quantity(col. 3 ? col. 5)

Reasons for unlifted/ undistributed quantity, if
any

1

2

3

4

5

6

7

Rice
Wheat
Coarse grains
Total

Signature _____

Name of the officer _____

(to be signed by the Secretary of the
Food and Civil Supplies Department of the State Government/ UT Administration)

Date _____

Place _____

Note: The information shall be furnished on or before 30th June of the next financial year.

Annex-V

Annual Statement on monitoring of Targeted Public Distribution System and action taken (for the period ending 31st March, 20 ----) [see sub-clause (10) of clause 10]

(A)

{

|

| No. of inspections conducted

| No. of raids conducted

| Nos. of FPS licences

| No. of FIRs lodged

| No. of persons arrested

| Remarks

|

| Suspended

| Restored

| Cancelled

| Pending for a decision

}

(B)

I. Total number of fair price shops in the State / UT: _____

II. Total number of fair price shop owners' licenses suspended during the financial year:

III. Out of II above, numbers of fair price shop owners whose license was suspended for a period more than six months:

(C)

{

|

| Details of fair price shop owners whose license
suspended for a period of more than six months

|

| No. of licenses suspended

| No. of licenses restored

| No. of licenses cancelled

| Pending for a decision

|

|

|

|

|

}

Note: The information shall be furnished on or before 30th June of the next financial year

Annex-VI

Annual Statement on functioning of Vigilance Committees (VCs) (for the period ending 31st March of the year)
[see sub-clause (6) of clause 11]

1. Total number of Districts in the State/ UT: _____
2. Total number of Tehsils in the State/ UT: _____
3. Total number of Blocks in the State/ UT: _____
4. Total number of fair price shops in the State/ UT: _____

Total number of Vigilance Committees (VCs) set up

Periodicity of meetings of VCs prescribed by

State/ T (i.e. Monthly/ once in two months/ quarterly)

No. of meetings held during the financial year

State/ UT level

District level

Tehsil level

Block level

FPS level

Total

Note: The information shall be furnished on or before 30th June of the next financial year.

Annex-VII

Statement on handling of grievances (for the quarter ending June/ Sept./ Dec./ March) [see sub-clause (12) of clause 11]

A. Toll free helpline Number (s): _____

B. Web address of State Portal for grievance registration and redressal: _____

I. Statement of Grievance Registration and Redressal:

Location/ Source

Opening Balance of No. of Grievances

No. of Grievances received during the quarter

No. of Grievances disposed during the quarter

Closing Balance of No. of Grievances at the end
of the quarter

1

2

3

4

5

Call Centre

State Portal

District Grievance Redressal

Officer (DGRO)

Any other source

Total

Note: The information shall be furnished within two weeks after end of every quarter.

Related AI tags, queries and research notes

Translation